

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

8. MADISON MEXIA V. JOSEPH MEXIA

25FL0339

This matter was continued from January 15, 2026, regarding the Petitioner's Request for Order (RFO) filed October 10, 2025, to set child custody and visitation, child support and spousal support, and issue an award of need-based attorney fees (see Fam. Code, § 2030, et seq.) in the amount of \$6,500.00. At the January 15 hearing, the court (1) ordered both parties to file and serve their current Income and Expense Declarations (I&E) with supporting documentation; (2) referred the parties to a CCRC session set for February 5, 2026; and (3) authorized the parties to utilize a private mediator if they agree to do so.

On March 26, 2026, the Petitioner filed her current I&E, which was electronically served upon the Respondent that same day according to the proof of service, also filed March 26, 2026. Petitioner declares she is unemployed and has zero monthly income.

On April 1, 2026, the Respondent filed his current I&E. However, there is no supporting documentation (i.e., paystubs) attached to Respondent's I&E. Further, there is no proof of service for Respondent's I&E in the court's file. Because there is no proof of service, the court does not consider Respondent's I&E. The only evidence before the court of Respondent's income is found in Petitioner's I&E, which estimates Respondent's gross monthly income to be \$10,000.00. The court will use this figure to calculate child and spousal support amounts.

The court is in receipt of a CCRC report dated March 27, 2026. A copy of the report was electronically served upon both parties, as well as the Petitioner's attorney, on March 27, 2026, according to the Clerk's Certificate of Mailing filed that same day.

On April 2, 2026, the Petitioner filed a reply declaration concerning the CCRC report, a copy of which was electronically served upon the Respondent that same day according to the proof of service filed April 3, 2026.

Respondent filed a Declaration on April 7, 2026. There is no Proof of Service for this document, and as such, the court has not considered it. Further, the court finds this to be late filed, and would not have considered it on those grounds as well.

The court finds that the recommendations of the CCRC counselor in the March 27, 2026, report are in the best interests of the parties' children and so adopts them as the orders of the court.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

Turning to the issue of child support, the court finds that Respondent's custody share of the parties' minor children, JM (age 4) and RM (age 2), is approximately 13 percent. The court bases this figure on the fact that Respondent shall have visitation with the children at least two times per month. According to the CCRC report, Respondent believes it is possible for him to visit the children one time per month in El Dorado County (where Petitioner resides) and one time per month in San Luis Obispo (where Respondent resides). Thus, the court approximates that Respondent will have visitation two weekends per month (96 hours of visitation / 720 hours in a month = 13 percent, rounded down to nearest whole number).

As shown in the attached XSpouse calculation printout, Respondent is ordered to pay child support to the Petitioner in the amount of \$3,324, and temporary guideline spousal support to the Petitioner in the amount of \$1,621.00. This order is effective November 1, 2025. Payments are due on the first of each month until further order of the court or termination by operation of law.

The court finds this order results in an arrears balance of \$29,676 for the months of November through April inclusive. The court is ordering Respondent to pay Petitioner \$1,483.80 per month as and for arrears beginning May 15, 2026. Further payments are due on the 15th of each month until paid in full (approximately 20 months). If there is any missed or late payment, the full amount is due and owing.

Lastly, the court addresses the issue of attorney fees. Family Code section 2030, subdivision (a)(1) provides: "In a proceeding for dissolution of marriage ..., the court shall ensure that each party has access to legal representation, including access early in the proceedings, to preserve each party's rights by ordering, if necessary based on the income and needs assessments, one party ... to pay the other party, or to the other party's attorney, whatever amount is reasonably necessary for attorney's fees and for the cost of maintaining or defending the proceeding during the pendency of the proceeding."

When a request for attorney fees is made under Family Code section 2030, the trial court must make findings on (1) whether a fee award is appropriate, (2) whether there is a disparity in access to funds to retain counsel, and (3) whether one party is able to pay for the legal fees of both parties. (Fam. Code, § 2030, subd. (a)(2).) The court must award attorney fees if the findings demonstrate a disparity in access and ability to pay. (*Ibid.*) However, an award of attorney fees under Family Code section 2030 must be just and reasonable under the relative circumstances of the parties. (Fam. Code, § 2032, subd. (a); *In re Marriage of Sorge* (2012) 202 Cal.App.4th 626, 662–663.)

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

In light of the court's tentative ruling regarding child and spousal support, including the relatively large amount of arrears, the court finds that the Respondent does not presently have the ability to pay the legal representation fees of both parties. Therefore, the court denies Petitioner's request for attorney fees without prejudice.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #8: THE PETITIONER'S RFO IS GRANTED IN PART AND DENIED IN PART. THE COURT FINDS THAT THE RECOMMENDATIONS OF THE CCRC COUNSELOR IN THE MARCH 27, 2026, REPORT ARE IN THE BEST INTERESTS OF THE PARTIES' CHILDREN AND SO ADOPTS THEM AS THE ORDERS OF THE COURT.

RESPONDENT IS ORDERED TO PAY CHILD SUPPORT TO THE PETITIONER IN THE AMOUNT OF \$3,324, AND TEMPORARY GUIDELINE SPOUSAL SUPPORT TO THE PETITIONER IN THE AMOUNT OF \$1,621.00. THIS ORDER IS EFFECTIVE NOVEMBER 1, 2025. PAYMENTS ARE DUE ON THE FIRST OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

THE COURT FINDS THIS ORDER RESULTS IN AN ARREARS BALANCE OF \$29,676 FOR THE MONTHS OF NOVEMBER THROUGH APRIL INCLUSIVE. THE COURT IS ORDERING RESPONDENT TO PAY PETITIONER \$1,483.80 PER MONTH AS AND FOR ARREARS BEGINNING MAY 15, 2026. FURTHER PAYMENTS ARE DUE ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 20 MONTHS). IF THERE IS ANY MISSED OR LATE PAYMENT, THE FULL AMOUNT IS DUE AND OWING.

THE PETITIONER'S REQUEST FOR ATTORNEY FEES IS DENIED WITHOUT PREJUDICE.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6275 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO*

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 9, 2026

8:30 a.m./1:30 p.m.

LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures	CASH FLOW	
#of children	0	2	2026		
% time with NCP	13.00 %	0.00 %		Combined net spendable	8454
Filing status	MFJ->	<-MFJ	Nets(adjusted)		
# exemptions	1 *	3 *	Father	8454	Father
Wages+salary	10000	0	Mother	0	Payment Cost/Benefit
Self-employed income	0	0	Total	8454	Net spendable income
Other taxable income	0	0			3508
TANF+CS received	0	0	Support		Federal income tax
Other nontaxble income	0	0	Addons	0	Federal employment tax
New spouse income	0	0	Guideln CS	3324	State income tax
401(k) employee contrib	0	0	Alameda SS	1621	State employment tax
Adjustments to income	0	0	Total	4946	Total taxes
SS paid prev marriage	0	0	-		Federal filing status
CS paid prev marriage	0	0			MFJIN
Health insurance	0	0			State filing status
Other medical expense	0	0			MFJIN
Property tax expense	0	0			
Ded interest expense	0	0			Mother
Charitable contributions	0	0			Payment Cost/Benefit
Misc tax deductions	0	0			4946
Qual bus income ded	0	0			Net spendable income
Required union dues	0	0			4946
Mandatory retirement	0	0			Federal income tax
Hardship deduction	0 *	0 *			0
Other GDL deductions	0	0			Federal employment tax
Child care expenses	0	0			0
					State income tax
					0
					State employment tax
					0
					Total taxes
					0
					Federal filing status
					MFJIN
					State filing status
					MFJIN

Father pays child support, spousal support

FC 4055 checking: **ON**

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	12 - 88	0	0	0	Father	3324	Father	3324	Father
	13 - 87	0	0	0	Father	1302	Father	1302	Father
	13 - 87	0	0	0	Father	2023	Father	2023	Father

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

9. ASHLEY MILLS V. COLE MILLS

PFL20200476

On November 9, 2025, Petitioner filed an ex parte application for custody orders. The request was denied on an ex parte basis but set for trial on the regular law and motion calendar. She filed another ex parte on December 3, 2025, and she followed that by filing a Request for Order (RFO) renewing her ex parte requests.

Respondent filed and served his Responsive Declaration to Request for Order on March 24, 2026.

The parties attended Child Custody Recommending Counseling (CCRC) on December 15, 2025. They were unable to reach any agreements therefore a report with recommendations was prepared and mailed to the parties on March 27th.

Petitioner filed a Supplemental Declaration on March 30th, the court deems this to be a Reply Declaration.

Petitioner is requesting sole legal and sole physical custody. She asks that Respondent have only supervised visits with the minor children. She further asks that Respondent be ordered to use SoberLink testing during his parenting time and an ignition interlock device while driving.

Respondent opposes the requests and asks that Petitioner be sanctioned \$2,500 pursuant to Family Code § 271.

After reviewing the filings as outlined above, the court does find the recommendations contained in the CCRC report to be in the best interests of the minors. They are hereby adopted as the orders of the court. Respondent is admonished that failure to abide by these orders may result in the court modifying its custody orders in the future.

“Section 271 provides that a family court may impose an award of attorney fees and costs ‘in the nature of a sanction’ where the conduct of a party or attorney ‘frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation between the parties and attorneys.’ (§ 271, subd. (a).)” (*In re Marriage of Tharp* (2010) 188 Cal.App.4th 1295, 1316.) “Expressed another way, section 271 vests family law courts with an additional means with which to enforce this state’s public policy of promoting settlement of family law litigation, while reducing its costs through mutual cooperation of clients and their counsel.” (*Id.* at 1318.) The court denies Respondent’s request for sanctions. The court finds Petitioner’s actions do not fall